

19. **Purchase of Advowson.**—The purchase of an *advowson* upon the footing that immediate possession shall be given is clearly simoniacal; and yet, notwithstanding the stringent words of the Acts against simony, and of the declaration to be made by the clerical purchaser, such transactions are of too frequent occurrence. As any stipulation *for the resignation of the present incumbent [*105] would be illegal and could not be enforced, the purchaser is obliged to rely upon the honour of the vendor, the purchase money in the meantime being impounded in the hands of trustees, to be paid over upon the intentions of the parties being carried into effect.

20. **Insurances for life.**—It has been ruled that the statute relating to *insurances* on lives does not prohibit an insurance on the life of A. in the name of B. *upon trust for A.* when both names appear upon the policy (a). But an insurance on the life of A. by B. a creditor, not on his own account, but as a trustee for C., who has no interest in the life, would, it is considered, be void.

21. **Income tax.**—The income tax Act (b) avoids all contracts or agreements by which one person undertakes to pay the *income tax* of another; but this does not prevent a settlor from vesting an estate in trustees upon trust to pay “all taxes affecting the lease” (meaning inclusively the income tax), and subject thereto for A. for life (c).

22. **Splitting votes.**—Fictitious, fraudulent, or collusive conveyances for the purpose of *creating votes* for members of parliament, as when the conveyance is in form only, and there is a private arrangement between the parties that no interest shall pass, are null and void; but if A., *bonâ fide* and without any secret understanding in derogation of the deed, though for the purpose of multiplying votes, convey to B. in trust for a number of persons as tenants in common, that

ter, 6 Bing. 1; Cowper v. Mantell, 22 Beav. 231; Id. qu.

(a) Collett v. Morrison, 9 Hare, 162.

(b) 5 & 6 Vict. c. 35, s. 73.

(c) Lord Lovat v. Duchess of Leeds (No. 1), 2 Dr. & Sm. 62; Festing v. Taylor, 32 L.J. N. S. 41; 3 B. & S. 217; [Re Bannerman's Estate, 21 Ch. D. 105.]